

Colonial Courts of Admiralty Act, 1890

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Union of India - Act

Colonial Courts of Admiralty Act, 1890

UNION OF INDIA

India

Colonial Courts of Admiralty Act, 1890

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Colonial Courts of Admiralty Act, 1890

53.

AND 54 VICT., C. 27

1489.

[25th July, 1890]

An Act to amend the law respecting the exercise of Admiralty Jurisdiction in Her Majesty's Dominions and elsewhere out of the United Kingdom.

1.

Short title.-

This Act may be cited as the Colonial Courts of Admiralty Act, 1890.

2.

Colonial Courts of Admiralty.-

(1)

Every Court of law in a British possession, which is for the time being declared in pursuance of this Act to be a Court of Admiralty, or, which, if no such declaration is in force in the possession, has therein original unlimited civil jurisdiction, shall be a Court of Admiralty, with the jurisdiction in this Act mentioned, and may for the purpose of that jurisdiction, exercise all the powers which it possesses for the purpose of its other civil jurisdiction and such Court in reference to the jurisdiction conferred by this Act is in this Act referred to as a Colonial Court of Admiralty. Where in a British possession the Governor is the sole judicial authority the expression "Court of law" for the purposes of this section includes such Governor.

(2)

The jurisdiction of a Colonial Court of Admiralty shall, subject to the provisions of this Act, be over the like places, persons, matters, and things, as the Admiralty jurisdiction of the High Court in England, whether existing by virtue of any statute of otherwise and the Colonial Court of Admiralty may exercise such jurisdiction in like manner and to as full an extent as the High Court in England, and shall have the same regard as that Court to international law and the comity of nations.

(3)

Subject to the provisions of this Act any enactment referring to a Vice-Admiralty Court, which is contained in an Act of the Imperial Parliament or in a Colonial law, shall apply to a Colonial Court of Admiralty, and be read as if the expression "Colonial Court of Admiralty" were therein, substituted for "Vice-Admiralty Court" or for other expressions respectively referring to such Vice-Admiralty Courts or the Judge thereof, and the Colonial Court of Admiralty shall have jurisdiction accordingly:

Provided as follows :

(a)

Any enactment in an Act of the Imperial Parliament referring to the Admiralty jurisdiction of the High Court in England when applied to Colonial Court of Admiralty in a British possession, shall be read as if the name of that possession were therein substituted for England and Wales: and

(b)

A Colonial Court of Admiralty shall have under the Naval Prize Act, 1864, and under the Slave Trade Act, 1873, and any enactment relating to prize or the slave trade, the jurisdiction thereby conferred on a Vice-Admiralty Court and not the jurisdiction thereby conferred exclusively on the High Court of Admiralty or the High Court of Justice; but, unless for the time being duly authorised, shall not by virtue of this Act exercise any jurisdiction under the Naval Prize Act, 1864, or otherwise in relation to prize; and

(c)

A Colonial Court of Admiralty shall not have jurisdiction under this Act to try or punish a person for an offence which according to the law of England is punishable on indictment; and

(d)

A Colonial Court of Admiralty shall not have any greater jurisdiction in relation to the laws and regulations relating to Her Majesty's Navy at sea or under any Act providing for the discipline of Her Majesty's Navy than may be from time to time conferred on such Court by Order in Council.

(4)

Where a Court in a British possession exercises in respect of matters arising outside the body of a country or other like part of a British possession any jurisdiction exercisable under this Act, that jurisdiction shall be deemed to be exercised under this Act and not otherwise.

3.

Power of Colonial legislature as to Admiralty jurisdiction.-

The legislature of a British possession may by any Colonial law :

(a)

declare any Court of unlimited civil jurisdiction, whether original or appellate, in that possession to be a Colonial Court of Admiralty. and provide for the exercise by such Court of its jurisdiction under this Act. and limit territorially. or otherwise, the extent of such jurisdiction; and

(b)

confer upon any inferior or subordinate Court in that possession such partial or limited Admiralty jurisdiction under such regulations and with such appeal (if any) as may seem fit :

Provided that any such Colonial law shall not confer any jurisdiction which is not by this Act conferred upon a Colonial Court of Admiralty.

4.

Reservation of Colonial law for Her Majesty's assent.-

Every Colonial law which is made in pursuance of this Act, or affects the jurisdiction of or practice or procedure in any Court of such possession in respect of the jurisdiction conferred by this Act, or alters any such Colonial law as above in this section mentioned, which has been previously passed, shall unless previously approved by Her Majesty through a Secretary of State, either be reserved for the signification of Her Majesty's pleasure thereon, or contain a suspending clause providing that such law shall not come into operation until Her Majesty's pleasure thereon has been publicly signified in the British possession in which it has been passed.

[This section shall not apply to Indian laws [* * *]]

[Inserted by A.O.(P).]

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5.

Local Admiralty appeal.-

Subject to rules of Court under this Act, judgments of a Court in a British possession given or made in the exercise of the jurisdiction conferred on it by this Act, shall be subject to the like local appeal, if any, as judgment of the Court in the exercise of its ordinary civil jurisdiction, and the Court having cognizance of such appeal shall for the purpose thereof possess all the jurisdiction by this Act conferred upon a Colonial Court of Admiralty.

6.

Admiralty appeal to the Queen In Council.-

(1)

The appeal from a judgment of any Court in a British possession in the exercise of the jurisdiction conferred by this Act either where there is as of right no local appeal or after a decision on local appeal, lies to Her Majesty the Queen in Council.

(2)

Save as may be otherwise specially allowed in a particular case by Her Majesty the Queen in Council, an appeal under this section shall not be allowed-

(a)

from any judgment not having the effect of a definitive judgment unless the Court appealed from has given leave for such appeal, nor

(b)

from any judgment unless the petition of appeal has been lodged within the time prescribed by rules, or if no time is prescribed within six months from the date of the judgment appealed against, or if leave to appeal has been given then from the date of such leave.

(3)

For the purpose of appeals under this Act. Her Majesty the Queen in Council and the Judicial Committee of the Privy Council shall, subject to rules under this section, have all such powers for making and enforcing judgments, whether interlocutory or final, for punishing contempts, for requiring the payment of money into Court, or for any other purpose, as may be necessary, or as were possessed by the High Court of Delegates before the passing of the Act transferring the powers of such Court to Her Majesty in Council, or as are for the time being possessed by the High Court in England or by the Court appealed from in relation to the like matters as those forming the subject of appeals under this Act.

(4)

All Orders of the Queen in Council or the Judicial Committee of the Privy Council for the purposes aforesaid or otherwise in relation to appeals under this Act shall have full effect throughout Her Majesty's dominions and in all places where Her Majesty has jurisdiction,

(5)

This section shall be in addition to and not in derogation of the authority of Her Majesty in Council or the Judicial Committee of the Privy Council arising otherwise than under this Act, and all enactments relating to appeals to Her

Majesty in Council or to the powers of Her Majesty in Council or the Judicial Committee of the Privy Council in relation to those appeals, whether for making rules and orders or otherwise, shall extend, save as otherwise directed by Her Majesty in Council, to appeals to Her Majesty in Council under this Act.

7.

Rules of Court.-

(1)

Rules of Court for regulating the procedure and practice (including fees and costs) in a Court in a British possession in the exercise of the jurisdiction conferred by this Act, whether original or appellate, may be made by the same authority and in the same manner as rules touching the practice, procedure, fees, and costs in the said Court in the exercise of its ordinary civil jurisdiction respectively are made:

Provided that the rules under this section shall not, save as provided by this Act, extend to matters relating to the slave trade, and shall not (save as provided by this section) come into operation until they have been approved by Her Majesty in Council, but on coming into operation shall have full effect as if enacted in this Act, and any enactment inconsistent therewith shall, so far as it is so inconsistent, be repealed.

(2)

It shall be lawful for Her Majesty in Council, in approving rules made under this section, to declare that the rules so made with respect to any matters which appear to Her Majesty to be matters of detail or of local concern may be revoked, varied, or added to without the approval required by this section.

(3)

Such rules may provide for the exercise of any jurisdiction conferred by this Act by the full Court, or by any judge or judges thereof, and subject to any rules, where the ordinary civil jurisdiction of the Court can in any case be exercised by a single judge, any jurisdiction conferred by this Act may in the like case be exercised by a single Judge.

8.

Droits of Admiralty and of the Crown.-

(1)

Subject to the provisions of this section nothing in this Act shall alter the application of any droits of Admiralty or droits of or forfeitures to the Crown in a British possession; and such droits and forfeitures, when condemned by a Court of a British possession in the exercise of the jurisdiction conferred by this Act, shall, save as is otherwise provided by any other Act, be notified, accounted for and dealt with in such manner as the Treasury from time to time direct, and the officers of every Colonial Court of Admiralty and of every other Court in a British possession exercising Admiralty jurisdiction shall obey such directions in respect of the said droits and forfeitures as may be from time to time given by the Treasury.

(2)

It shall be lawful for Her Majesty the Queen in Council by order to direct that, subject to any conditions, exceptions, reservations, and regulations contained in the Order, the said droits and forfeitures condemned by a Court in a British possession shall form part of the revenues of that possession either for ever or for such limited term or subject to such revocation as may be specified in the order.

(3)

If and so long as any of such droits or forfeitures by virtue of this or any other Act form part of the revenues of the said possession the same shall be subject to the provisions of any law for the time being applicable thereto, be notified, accounted for, and dealt with in manner directed by the Government of the possession and the Treasury shall not have any power in relation thereto.

9.

Power to establish Vice-Admiralty Court.-

(1)

It shall be lawful for Her Majesty, by commission under the Great Seal, to empower the Admiralty to establish in a British possession any Vice-Admiralty Court or Courts.

(2)

Upon the establishment of a Vice-Admiralty Court in a British possession, the Admiralty, by writing under their hands and the seal of the office of Admiralty, in such form as the Admiralty direct, may appoint a Judge, registrar, marshal, and other officers of the Court, and may cancel any such appointment; and in addition to any other jurisdiction of such Court,

may (subject to the limits imposed by this Act or the said commission from Her Majesty) vest in such Court the whole or any part of the jurisdiction by or by virtue of this Act conferred upon any courts of that British possession, and may vary or revoke such vesting, and while such vesting is in force the power of such last mentioned Courts to exercise the jurisdiction so vested shall be suspended.

Provided that

(a)
nothing in this section shall authorise a Vice-Admiralty Court so established in India [[* *]

[Substituted by A.O.(P).]

or in any other British possession] having a representative legislature, to exercise any jurisdiction, except for such purpose relating to prize, to Her Majesty's Navy, to the slave trade, to the matters dealt with by the Foreign Enlistment Act, 1870, or the Pacific Islanders Protection Acts, 1872 and 1875, or to matters in which questions arise relating to treaties or conventions with foreign countries, or to international law; and

(b)
in the event of a vacancy in the office of Judge, registrar, marshal, or other officer of any Vice-Admiralty Court in a British possession, the Governor of that possession may appoint a fit person to fill the vacancy until an appointment to the office is made by the Admiralty.

(3)
The provisions of this Act with respect to appeals to Her Majesty in Council from Courts in British possessions in the exercise of the jurisdiction conferred by this Act shall apply to appeals from Vice-Admiralty Courts but the rules and orders made in relation to appeals from Vice-Admiralty Courts may differ from the rules made in relation to appeals from the said Courts in British possessions.

(4)
If Her Majesty at any time by commission under the Great Seal so directs, the Admiralty shall by writing under their hands and the seal of the office of Admiralty abolish a Vice-Admiralty Courts established in any British possession under this section, and upon such abolition the jurisdiction of any Colonial Court of Admiralty in that possession which was previously suspended shall be revived.

10.

Power to appoint a Vice-Admiral.-

Nothing in this Act shall affect any power of appointing a vice-admiral in and for any British possession or any place therein: and whenever there is not a formally appointed vice-admiral in a British possession or any place therein, the Governor of the possession shall be ex-officio vice-admiral thereof.

11.

Exception of Channel Islands and other possessions.-

(1)

The provisions of this Act with respect to Colonial Courts of Admiralty shall not apply to the Channel Islands.

(2)

It shall be lawful for the Queen in Council by order to declare, with respect to any British possession which has not a representative legislature, that the jurisdiction conferred by this Act on Colonial Courts of Admiralty shall not be vested in any Court of such possession, or shall be vested only to the partial or limited extent specified in the Order.

12.

Application of Act to Courts under Foreign Jurisdiction Acts.-

It shall be lawful for Her Majesty the Queen in Council by Order to direct that this Act shall, subject to the conditions, exceptions, and qualifications (if any) contained in the Order, apply to any court established by Her Majesty for the exercise of jurisdiction in any place out of Her Majesty's dominions which is named in the Order as if that Court were a Colonial Court of Admiralty, and to provide for carrying into effect such application.

13.

Rules for procedure in slave trade matters.-

(1)

It shall be lawful for Her Majesty the Queen in Council by Order to make rules as to the practice and procedure (including fees and costs) to be observed in and the returns to be made from Colonial Courts of Admiralty and Vice-Admiralty Courts in the exercise of their jurisdiction in matters relating to the slave trade, and in and from East

African Courts as defined by the Slave Trade (East African Courts) Acts, 1873 and 1879.

(2)

Except when inconsistent with such Order in Council, the rules of Court for the time being in force in a Colonial Court of Admiralty or Vice-Admiralty Courts shall, so far as applicable, extend to proceedings in such Court in matters relating to the slave trade.

(3)

The provisions of this Act with respect to appeals to Her Majesty in Council, from Courts in British possessions in the exercise of the jurisdiction conferred by this Act, shall apply, with the necessary modifications, to appeals from judgments of any East African Court made or purporting to be made in exercise of the jurisdiction under the Slave Trade (East African Courts) Acts, 1873 and 1879.

14.

Orders in Council.-

It shall be lawful for Her Majesty in Council from time to time to make Orders for the purposes authorised by this Act, and to revoke and vary such Orders, and every such Order while in operation shall have effect as if it were part of this Act.

15.

Interpretation.-

In the construction of this Act, unless the context otherwise requires The expression "representative legislature" means, in relation to a British possession, a legislature comprising a legislative body of which at least on behalf are elected by inhabitants of the British possession.

The expression "unlimited civil jurisdiction" means civil jurisdiction unlimited as to the value of the subject-matter at issue, or as to the amount that may be claimed or recovered.

The expression "judgment" includes a decree, order, and sentence.

The expression "appeal" means any appeal, rehearing, or review; and the expression "local appeal" means an appeal to any Court inferior to Her Majesty in Council.

The expression "Colonial law" means any Act, ordinance, or other law having the force of legislative enactment in a British possession and made by any authority, other than the Imperial Parliament of Her Majesty in Council, competent to make laws for such possession.

16.

Commencement of Act.-

(1)

This act shall, save as otherwise in this Act provided, come into force in every British possession on the first day of July, one thousand eight hundred and ninety-one.

Provided that

(a)

This Act shall not come into force in any of the British possessions named in the First Schedule to this Act until Her Majesty so directs by Order in Council and until the day named in that behalf in such Order; and

(b)

If before any day above mentioned rules of Court for the Colonial Court of Admiralty in any British possession have been approved by Her Majesty in Council, this Act may be proclaimed in that possession by the Governor thereof, and on such proclamation shall come into force on the day named in the proclamation.

(2)

The day upon which this Act comes into force in any British possession shall, as regards that British possession, be deemed to be the commencement of this Act.

(3)

If, on the commencement of this Act in any British possession, rules of Court have not been approved by Her Majesty in pursuance of this Act, the rules in force at such commencement under the Vice-Admiralty Courts Act, 1863, and in India the rules in force at such commencement regulating the respective Vice-Admiralty Courts or Courts of Admiralty in India, including any rules made with reference to proceedings instituted on behalf of Her Majesty's ships, shall, so far as applicable, have effect in the Colonial Courts or Courts of Admiralty of such possession, and in any Vice-Admiralty Court established under this Act in that possession, as rules of Court under this Act, and may be revoked and varied

accordingly; and all fees payable under such rules may be taken in such manner as the Colonial Court may direct, so however that the amount of each such fee shall so nearly as practicable be paid to the same officer or person who but for the passing of this Act would have been entitled to receive the same in respect of like business. So far as any such rules are inapplicable or do not extend, the rules of Court for the exercise by a Court of its ordinary civil jurisdiction shall have effect as rules for the exercise by the same Court of the jurisdiction conferred by this Act.

(4)

At any time after the passing of this Act any Colonial law may be passed, and any Vice-Admiralty Court may be established and jurisdiction vested in such Court but any such law, establishment, or vesting shall not come into effect until the commencement of this Act.

17.

Abolition of Vice-Admiralty Courts.-

On the commencement of this Act in any British possession. but subject to the provisions of this Act, every Vice-Admiralty Court in that possession shall be abolished : subject as follows:

(1)

All judgments of such Vice-Admiralty Court shall be executed and may be appealed from in like manner as if this Act had not been passed, and all appeals from any Vice-Admiralty Court pending at the commencement of this Act shall be heard and determined, and the judgment thereon executed as may be in like manner as if this Act had not been passed;

(2)

All proceedings pending in the Vice-Admiralty Court in any British possession at the commencement of this Act shall, notwithstanding the repeal of any enactment by this Act, be continued in a Colonial Court of Admiralty of the possession in manner directed by rules of Court, and, so far as no such rule extends, in a like manner as nearly as may be. as if they had been originally begun in such Court;

(3)

Where any person holding an office, whether that of Judge, Registrar or Marshal, or any other office in any such Vice-Admiralty Court in a British possession, suffers any pecuniary loss in consequence of the abolition of such Court, the Government of the British possession, on complaint of such person, shall provide that such person shall receive reasonable compensation (by way of an increase of salary or a capital sum, or otherwise) in respect of his loss, subject nevertheless to the performance, if required by the said Government of the like duties as before such abolition;

(4)

All books, papers, documents, office furniture, and other things at the commencement of this Act belonging, or appertaining to any Vice-Admiralty Court. shall be delivered over to the proper officer of the Colonial Court of Admiralty, or be otherwise dealt with in such manner as, subject to any directions from Her Majesty, the Governor may direct;

(5)

Where, at the commencement of this Act in a British possession, any person holds a commission to act as advocate in any Vice-Admiralty Court abolished by this Act, either for Her Majesty or for the Admiralty, such commission shall be of the same avail in every Court of the same British possession exercising jurisdiction under this Act, as if such Court were the Court mentioned or referred to in such commission.

18.

Repeal.-

The Acts specified in Second Schedule to this Act shall, to the extent mentioned in the third column of that schedule, be repealed as respects any British possession as from the commencement of this Act in that possession, and as respects any court out of Her Majesty's dominions as from the date of any Order applying this Act:

Provided that

(a)

Any appeal against a judgment made before the commencement of this Act may be brought and any such appeal and any proceedings or appeals pending at the commencement of this Act may be carried on and completed and carried into effect as if such repeal had not been enacted; and

(b)

All enactments and rules at the passing of this Act in force touching the practice, procedure, fees, costs, and returns in matters relating to the slave trade, in Vice-Admiralty Courts and in East African Courts shall have effect as rules made in pursuance of this Act, and shall apply to Colonial Courts of Admiralty, and may be altered and revoked accordingly.

FIRST SCHEDULE

SECTION 16. BRITISH POSSESSIONS IN WHICH OPERATION OF ACT IS DELAYED

New South Wales

Victoria

St. Helena

British Honduras

SECOND SCHEDULE

SECTION 18. ENACTMENTS REPEALED

SESSION AND CHAPTER

TITLE OF ACT

EXTENT OF REPEAL

56 Geo. 3, c. 82

An Act to render valid the judicial Acts of Surrogates of Vice-Admiralty Courts abroad, during vacancies in office, of Judges of such Courts.

The whole Act.

2 & 3 Will. 4, c. 51

An Act to regulate the practice and the fees in the Vice-Admiralty Courts abroad, and to obviate doubts as to their jurisdiction.

The whole Act.

3 & 4 Will. 4, c. 41

An Act for the better administration of justice in his Majesty's Privy Council.

Section 2.

6 & 7 Vict., c. 38

An Act to make further regulations for facilitating the hearing appeals and other matters by the Judicial Committee of the Privy Council.

In section 2, the words "or from any Admiralty or Vice-Admiralty Courts." and the words "or the Lords Commissioners of Appeals in prize causes or their surrogates"

In section 3, the words "and the High Court of Admiralty of England," and the words "and from any Admiralty or Vice-Admiralty Courts"

In section 5, from the first "the High Court of Admiralty" to the end of the section.

In section 7, the words "and from Admiralty or Vice-Admiralty Court" Sections 9 and 10, so far as relate to maritime causes.

In section 12, the words "or maritime"

In section 15, the words "and Admiralty and Vice-Admiralty."

& 8 Vict., c. 69

An Act for amending an Act passed in the fourth year of the reign of His late Majesty, entitled. "An Act for the better administration of justice in His Majesty's Privy Council," and to extend its jurisdiction and powers.

In section 12, the words "and from the Admiralty and Vice-Admiralty Courts;" and so much of the rest of the section as relates to maritime causes.

26 Vict., c. 24

The Vice-Admiralty Courts Act, 1863.

The whole Act.

30 & 31 Vict., c. 45

The Vice-Admiralty Courts (Amendment) Act, 1867.

The whole Act.

36 & 37 Vict., c. 59

The Slave Trade (East African Courts) Act, 1867.

Sections 4 and 5.

36 & 37 Vict., c. 88

The Slave Trade Act, 1873.

Section 20 as far as relates to the taxation of any costs, charges and expenses which can be taxed in pursuance of this

Act. In section 23 the words "under the Vice-Admiralty Courts Act, 1863."

38 & 39 Vict., c. 51

The Pacific Islanders Protection Act, 1875.

So much of section 6 as authorizes Her Majesty to confer Admiralty jurisdiction on any Court.

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